

IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

Case No. 20IN006-149

v.

VISITING JUDGE
JAMES L. KIMBLER

The Landings Property Association, Inc., *et al.*,

Defendants.

Mullins Bros., Ltd.,

Defendant/Third-Party
Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

**AMENDED ANSWER TO PLAINTIFF'S THIRD AMENDED COMPLAINT,
COUNTERCLAIM, AND CROSS-CLAIMS, OF DEFENDANTS ANGELA J.
ARUMPANAYIL, TRUSTEE; DEBORAH BANDA, ENON BANDA; CARY S. BECK;
ERIKA D. BECK; ANDREA BELCHER; KENNETH BELCHER; ROBERT BOYD;
JANET BOYD; ERIC LEE BROWN; REVECCA M. BUCKWALTER; AARON BURAK;
ALLISON BURAK; ANITA C. BYRD, TRUSTEE; EDWIN L. CABLE; SANDRA M.
CABLE; CHU-HSIANG CHEN; YONG-HWA CHEN; MATTHEW A. CHERUP;
KAREN L. CHERUP; JOSEPH R. CHRISTOPHER; CHERYL K. CHRISTOPHER;
KELLY L. CLARK; CHRISTOPHER A. CLARK; MARCELL CODISPOTI; PEGGY
CODISPOTI; PAULA C. COMPTON-SOLIE; EDWARD L. COSBY; JANICE COSBY,
TRUSTEES; DERK D. DEMAREE; ANITA M. DEMAREE; JOSEPH M. DEPOLO;
ROBIN L. DEPOLO; CAROL A. DIDINGER, TRUSTEE; MARK DRIFTMYER,
TRUSTEE; DEBORAH M. FORSYTHE; LINDA L. FRITZ; MARILOU M. FRITZ; AL
A. BALAA; PEGGY A. GADDIS; DONALD L. GARVIC; ANDREAS GIAKOUMAS;
YPATIA GIAKOUMAS; JAMES GOODRICH; DIANE GOODRICH; GARY GRAY;
CAROLYN GRAY; ADRIENNE D. HARRIS; JEFFRY D. HARRIS; BHARON HOAG;
HEATHER HOAG; SHANE ALAN KINTON, TRUSTEE; LAURIE ANN
KIRKPATRICK, TRUSTEE; ROBERT S. LEBOLD; JENNIFER LEBOLD; RICHARD
LITTLETON; VICKI LITTLETON; MARK A. LONG; DENISE A. LONG; JESSE L.
MARLOW; JANE C. MARLOW; HEWLET MCFARLANE; ANGELA N. MERRYMAN;**

SCOTT T. MIGLIN; SUSAN D. MIGLIN; MOUNT VERNON NAZARENE UNIVERSITY; STEPHEN D. MULLENDORE; JEANNE C. MULLENDORE, TRUSTEES; CHETAN I. PATEL; CHETNA C. PATEL; DOUGLAS P. PETERSON; DIANA L. PETERSON; PHILIP B. PETRIE; PRISCILLA J. PETRIE; RANDOLPH B. PLASSE; TINA M. PLASSE; BRADLEY PORTER; TONYA PORTER; BRIAN PRZERACKI; KENNETH RHOADES; MARY RHOADES; RALPH SHAFER; BENJAMIN SNOW; MARY MARGARET SNOW; MATTHEW SNOW; MEGAN SNOW; PHIL STOPHER; ELLEN STOPHER; JEFFREY STRICKLAND; RACHEL STRICKLAND; RODGER B. STULL; NANCY A. STULL; CHAD E. TAYLOR; MARK S. TUEL; CRYSTAL O. TUEL; MICHAEL ULREY; ROSEMARY ULREY; LAWRENCE VAIL; NANCY VAIL; ALEXANDER VARUGHESE; MARCIA J. VARUGHESE; BRAD WHITAKER; LESLIE WHITAKER; ANDREA WHITE; BRIAN WILLIAMS; DIANNE L. WILLIAMS; JAMES WILLIAMS; MARGARET B. WILLIAMS; AND TIMOTHY J. WILLIAMS

ANSWER

Defendants Angela J. Arumpanayil, Trustee; Deborah Banda, Enon Banda; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Robert Boyd; Janet Boyd; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Anita C. Byrd, Trustee; Edwin L. Cable; Sandra M. Cable; Chu-Hsiang Chen; Yong-Hwa Chen; Matthew A. Cherup; Karen L. Cherup; Joseph R. Christopher; Cheryl K. Christopher; Kelly L. Clark; Christopher A. Clark; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Joseph M. Depolo; Robin L. Depolo; Carol A. Didingar, Trustee; Mark Driftmyer, Trustee; Deborah M. Forsythe; Linda L. Fritz; Marilou M. Fritz; Al A. Balaa; Peggy A. Gaddis; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Gary Gray; Carolyn Gray; Adrienne D. Harris; Jeffry D. Harris; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Laurie Ann Kirkpatrick, Trustee; Robert S. Lebold; Jennifer Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Scott T. Miglin; Susan D. Miglin; Mount Vernon Nazarene University; Stephen D. Mullendore; Jeanne C. Mullendore, Trustees; Chetan I. Patel; Chetna C. Patel; Douglas P. Peterson; Diana L. Peterson;

Philip B. Petrie; Priscilla J. Petrie; Randolph B. Plasse; Tina M. Plasse; Bradley Porter; Tonya Porter; Brian Przeracki; Kenneth Rhoades; Mary Rhoades; Ralph Shafer; Benjamin Snow; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Rodger B. Stull; Nancy A. Stull; Chad E. Taylor; Mark S. Tuel; Crystal O. Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Brad Whitaker; Leslie Whitaker; Andrea White; Brian Williams; Dianne L. Williams; James Williams; Margaret B. Williams; and Timothy J. Williams (collectively “The Long Defendants”), for their Amended Answer to the Plaintiff’s Third Amended Complaint (“Complaint”), state as follows:

The paragraphs preceding the enumerated paragraphs of the Complaint state no allegations to which a response is required. To the extent a response may be deemed required, the Long Defendants deny that they have or had any responsibility to monitor, maintain, and/or operate the Knox Cattle Company Dam (“the Dam”), deny that they are “Potential Dam Owners”, and deny that they have the obligation to address any alleged public safety issues that may be posed by the Dam, or to bring the Dam into compliance with Ohio dam safety laws. To the extent a further response is required to the paragraphs that precede enumerated Paragraph 1 of the Complaint, the Long Defendants deny any and all allegations contained therein.

1. The Long Defendants admit the allegations in paragraph 1 of the Complaint.
2. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 2 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 2 of the Complaint states a legal conclusion to which no response is required.
3. The Long Defendants admit the allegations in paragraph 3 of the Complaint.
4. The Long Defendants admit the allegations in paragraph 4 of the Complaint.

5. The Long Defendants admit the allegations in paragraph 5 of the Complaint.

6. The Long Defendants admit the allegations in paragraph 6 of the Complaint.

7. In response to paragraph 7 of the Complaint, the Long Defendants deny that any of them are, or is, an “owner” of the Dam, individually or collectively. Further responding, the Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the remaining averments in paragraph 7 of the Complaint, and therefore deny all allegations therein.

8. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 8 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 8 of the Complaint states a legal conclusion to which no response is required.

9. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 9 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 9 of the Complaint states a legal conclusion to which no response is required.

10. The Long Defendants admit the allegations in paragraph 10 of the Complaint.

11. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 11 of the Complaint, and therefore deny all allegations therein.

12. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 12 of the Complaint, and therefore deny all allegations therein.

13. The Long Defendants admit the allegations in paragraph 13 of the Complaint.

14. The Long Defendants admit the allegations in paragraph 14 of the Complaint.

15. The Long Defendants admit the allegations in paragraph 15 of the Complaint.

16. The Long Defendants admit the allegations in paragraph 16 of the Complaint.
17. The Long Defendants admit the allegations in paragraph 17 of the Complaint.
18. The Long Defendants admit the allegations in paragraph 18 of the Complaint.
19. The Long Defendants admit the allegations in paragraph 19 of the Complaint.
20. The Long Defendants admit the allegations in paragraph 20 of the Complaint.
21. The Long Defendants deny the allegations in paragraph 21 of the Complaint.
22. The Long Defendants admit the allegations in paragraph 22 of the Complaint.
23. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 23 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 23 of the Complaint states a legal conclusion to which no response is required.
24. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 24 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 24 of the Complaint states a legal conclusion to which no response is required.
25. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 25 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 25 of the Complaint states a legal conclusion to which no response is required.
26. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 26 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 26 of the Complaint states a legal conclusion to which no response is required.

27. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 27 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 27 of the Complaint states a legal conclusion to which no response is required.

28. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 28 of the Complaint, and therefore deny all allegations therein.

29. In response to paragraph 29 of the Complaint, the Long Defendants deny that their conduct and/or omissions violate R.C. 1521.062(E). Further responding, the Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 29 of the Complaint, and therefore deny all allegations therein.

30. The Long Defendants admit the allegations in paragraph 30 of the Complaint.

31. In response to paragraph 31 of the Complaint, the Long Defendants reassert each of the denials and averments set forth in paragraphs 1 through 30 above as if fully rewritten herein.

32. In response to paragraph 32 of the Complaint, the Long Defendants state that the allegations contained therein state no allegations to which a response is required. To the extent a response is required, the Long Defendants deny the allegations.

33. In response to paragraph 33 of the Complaint, the Long Defendants deny that they are “Potential Dam Owners”, deny that they are owners of the Dam, and deny that they have the obligation to remedy any alleged violations. Further responding, the Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 33 of the Complaint, and therefore deny all allegations therein.

34. The Long Defendants admit the allegations in paragraph 34 of the Complaint.

35. The Long Defendants admit the allegations in paragraph 35 of the Complaint.

36. The Long Defendants admit the allegations in paragraph 36 of the Complaint.

37. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 37 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 37 of the Complaint states a legal conclusion to which no response is required.

38. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 38 of the Complaint, and therefore deny all allegations therein.

39. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 39 of the Complaint, and therefore deny all allegations therein.

40. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 40 of the Complaint, and therefore deny all allegations therein.

41. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 41 of the Complaint, and therefore deny all allegations therein.

42. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 42 of the Complaint, and therefore deny all allegations therein.

43. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 43 of the Complaint, and therefore deny all allegations therein.

44. In response to paragraph 44 of the Complaint, the Long Defendants admit that they did not perform remedial measures to bring the Dam into compliance with Ohio Dam Safety Laws, and state that they are not Potential Dam Owners, are not owners of the Dam, and were never requested to perform remedial measures to bring the Dam into compliance. Further responding, the Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 44 of the Complaint, and therefore deny all allegations therein.

45. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 45 of the Complaint, and therefore deny all allegations therein.

46. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 46 of the Complaint, and therefore deny all allegations therein.

47. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 47 of the Complaint, and therefore deny all allegations therein.

48. In response to paragraph 48 of the Complaint, the Long Defendants admit that they did not perform remedial measures to bring the Dam into compliance with Ohio Dam Safety Laws, and state that they are not Potential Dam Owners, are not owners of the Dam, and were never requested to perform remedial measures to bring the Dam into compliance. Further responding, the Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 48 of the Complaint, and therefore deny all allegations therein.

49. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 49 of the Complaint, and therefore deny all allegations therein.

50. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 50 of the Complaint, and therefore deny all allegations therein. Further responding, the second sentence of Paragraph 50 of the Complaint states a legal conclusion to which no response is required.

51. The Long Defendants are without knowledge or information sufficient to form a belief as to the truth of the averments in paragraph 51 of the Complaint, and therefore deny all allegations therein. Further responding, Paragraph 51 of the Complaint states a legal conclusion to which no response is required.

52. The Long Defendants deny all allegations in the Complaint not expressly admitted herein.

AFFIRMATIVE DEFENSES

Without admitting the truth of any allegations in the Complaint, or that the Complaint states a claim upon which relief can be granted against them, the Long Defendants state the following affirmative defenses:

1. The claims asserted in the Complaint are barred by the doctrine of waiver.
2. The claims asserted in the Complaint are barred by the doctrine of estoppel.
3. The claims asserted in the Complaint are barred by the actions of the Plaintiff amounting to unclean hands.
4. The claims asserted in the Complaint are barred by the doctrine of laches.
5. Plaintiff has failed to include one or more necessary and/or indispensable parties to this action. As an example, only, Plaintiff has failed to include all property owners in the watershed basin which contribute water flow to the Lake and the Dam, as discussed in this Court's Journal Entry filed July 26, 2022, and as identified in the

Identification of Properties in the Subwatersheds in the Vicinity of the Knox Cattle Farm Dam filed September 8, 2022.

6. None of the Long Defendants is an “owner” of the Dam under Ohio law, and they are, therefore, not responsible for its maintenance, nor are they responsible for remedying any alleged safety violations at the Dam.
7. The Long Defendants reserve their rights to respond further and raise additional affirmative defenses for any other matter constituting an avoidance as such may become known during the course of discovery or investigation in this action.

WHEREFORE, the Long Defendants demand that the Complaint be dismissed, that judgment be entered in their favor, that this Court award the Long Defendants their costs and attorney fees herein, and that they be granted such other and further relief, both legal and equitable, as may be proper.

COUNTERCLAIM

COUNT I

Declaratory Judgment **Ohio Revised Code § 2721.01 et seq.**

1. The Long Defendants incorporate by reference all paragraphs in their Amended Answer to Plaintiff’s Third Amended Complaint as if fully restated herein.
2. The Knox Cattle Company Dam (“the Dam”) is an earthen dam located on a tributary to Center Run in Knox County, Monroe Township, Ohio. The Dam impounds a lake (the “Lake”).
3. Upon information and belief, in 1992, Knox Cattle Company, an Ohio General Partnership (“Knox Cattle Company”) was the owner of the Dam, the Lake, and the land surrounding them.

4. On or about March 15, 2005, Knox Cattle Company transferred the property where the Dam and Lake are located to Defendant Mullins Bros., Ltd. (“Mullins Bros.”) via Warranty Deed. This is reflected in the Knox County Recorder’s records at BK 934, Page 587-591.

5. Defendant Mullins Bros. is an Ohio limited liability company organized under the laws of the State of Ohio, and is a company in good standing as registered with the Ohio Secretary of State. Its authorized representative was and is Steve Mullins.

6. At all times relevant to this Cross Claim, Mullins Bros. operated and/or did business in Knox County, Ohio, and is a “person” as defined under R.C. 1.59(C).

7. On March 31, 2005, Steve Mullins filed Articles of Incorporation with the Ohio Secretary of State for a non-profit corporation known as “The Landings Property Owners Association, Inc.”, with an effective date for said Articles of April 1, 2005. The purpose for which the corporation was formed was “[t]o hold, maintain and control the common properties of The Landings {sic} Phase VII and VIII.”

8. Defendant The Landings Property Owners Association, Inc. is a non- profit Ohio limited liability company organized under the laws of the State of Ohio, and is a company with a cancelled status with the Ohio Secretary of State as of February 19, 2015. Its authorized representative was Steve Mullins. At all times relevant to this Cross Claim, it operated and/or did business in Mount Vernon, Knox County, Ohio, and was a “person” as defined under R.C. 1.59(C).

9. On or about July 31, 2007, Mullins Bros. transferred its ownership of the Dam (Knox County Tax Parcel No. 66-09675.162) to The Landings Property Owners Association, Inc. by Quitclaim Deed, recorded in the Knox County Recorder’s Office on or about August 1, 2007, File No. 2007-00007572, Book No. 1091, Page Nos. 637-639.

10. Prior to the transfer of the Dam in August 2007, Mullins Bros. was the primary developer for The Landings Phase VII housing development.

11. On or about March 22, 2005, Mullins Bros., as the “Developer,” executed, filed, and recorded its Declaration of Building and Development Restrictions for The Landing Development Phase VII, Revised (“The Landing Phase VII Declaration”). This is reflected in the Knox County Recorder records at BK 935, Pages 640-650.

12. The Landing Phase VII Declaration was prepared by or on behalf of Mullins Bros.

13. None of the Long Defendants had any role in preparation of the Landing Phase VII Declaration.

14. The Landing Phase VII Declaration does not contain any reference to a dam.

15. The Landing Phase VII Declaration does not contain any reference to the Dam.

16. The Landing Phase VII Declaration does not state anywhere that any individual homeowner in The Landing Phase VII would have any responsibility for the care and maintenance of the Dam.

17. The Landing Phase VII Declaration does not state anywhere that any individual homeowner in The Landing Phase VII would have any responsibility for the care and maintenance of the Lake.

18. The Landing Phase VII Declaration provides that “each and every subplot in The Landing Development, Phase VII as recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records shall be conveyed subject to the following restrictive covenants: . . .”

19. The Landing Phase VII Declaration provides that Mullins Bros., as the Developer, would create a non-profit corporation, and stated, “This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”

20. On or about March 13, 2007, Mullins Bros., as the “Developer,” executed, recorded, and filed its Declaration of Building and Development Restrictions for the Landing

Development Phase VIII (“The Landing Phase VIII Declaration”). This is reflected in the Knox County Recorder records at BK 1069, Pages 118-128.

21. The Landing Phase VIII Declaration was prepared by or on behalf of Mullins Bros.
22. None of the Long Defendants had any role in preparation of the Landing Phase VIII Declaration.
23. The Landing Phase VIII Declaration does not contain any reference to a dam.
24. The Landing Phase VIII Declaration does not contain any reference to the Dam.
25. The Landing Phase VIII Declaration does not state anywhere that any individual homeowner in The Landing Phase VIII would have any responsibility for the care and maintenance of the Dam.
26. The Landing Phase VIII Declaration does not state anywhere that any individual homeowner in The Landing Phase VIII would have any responsibility for the care and maintenance of the Lake.
27. The Landing Phase VIII Declaration provides that “each and every subplot in The Landing Development, Phase VIII as recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records shall be conveyed subject to the following restrictive covenants: . . .”
28. The Landing Phase VIII Declaration provides that Mullins Bros., as the Developer, would create a non-profit corporation, and stated, “This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”
29. The Knox County Auditor’s website lists The Landings Property Owners Association, Inc. as the owner of the Dam (Knox County Tax Parcel No. 66-09675.162).
30. On October 14, 2009, David Hasselmann, Chief, Division of Soil and Water Resources, Ohio Department of Natural Resources, sent a letter to Steve Mullins, The Landings

Property Owners Association, Inc.; Crown Hill Condominiums; Stephen P. Upham and Stephanie J. Lord, John Michael and Mary Haughton; Wayne E. and Virginia Dunlop; Floyd E. and Carolyn Matthews; Bruce E. and Peggy L. Oldham; and William and Barbara Hatfield, stating:

It was found that significant development had taken place immediately downstream of the dam. Division engineers visited the dam during the spring of 2008 and evaluated its classification according to the mandates of the Ohio Administrative Code . . . Based on ariel photography and field observations, the classification of the Knox Cattle Dam has been changed from Class II to Class I due to the potential downstream hazard of the dam.

31. In 2009, the State of Ohio Department of Natural Resources, Division of Water Resources did not consider any of the Long Defendants to be owners of the Dam.

32. The State of Ohio Department of Natural Resources, Division of Water Resources, issued a 2010 Dam Safety Inspection Report regarding the Dam (“2010 Dam Safety Inspection Report”).

33. The State of Ohio Department of Natural Resources, Division of Water Resources sent the 2010 Dam Safety Inspection Report to who it considered to be the owners of the Dam, who were The Landings Property Owners Association, Inc., Crown Hill Condominiums, Stephen Upham, and Stephanie Lord, John and Maryann Haughton, Wayne Dunlop, Floyd and Carolyn Matthews, and Bruce and Peggy Oldam.

34. The State of Ohio Department of Natural Resources, Division of Water Resources did not send the 2010 Dam Safety Inspection Report to any of the Long Defendants, or any of their predecessors in title.

35. In 2010, the State of Ohio Department of Natural Resources, Division of Water Resources did not consider any of the Long Defendants to be owners of the Dam.

36. The State of Ohio Department of Natural Resources, Division of Water Resources, issued a 2015 Dam Safety Inspection Report regarding the Dam (“2015 Dam Safety Inspection Report”).

37. The State of Ohio Department of Natural Resources, Division of Water Resources sent the 2015 Dam Safety Inspection Report to who it considered to be the owners of the Dam, who were The Landings Property Owners Association, Inc., Crown Hill Condominiums, Stephen Upham, and Stephanie Lord, John and Maryann Haughton, Wayne Dunlop, Floyd and Carolyn Matthews, and Marla Prior.

38. The State of Ohio Department of Natural Resources, Division of Water Resources did not send the 2015 Dam Safety Inspection Report to any of the Long Defendants, or any of their predecessors in title.

39. In 2015, the State of Ohio Department of Natural Resources, Division of Water Resources did not consider any of the Long Defendants to be owners of the Dam.

40. On April 26, 2018, the State of Ohio Department of Natural Resources, Division of Water Resources sent a letter to potential owners of the Dam requesting a schedule for completing the required remedial measures listed in the 2010 and 2015 Dam Safety Inspection Reports.

41. The State of Ohio Department of Natural Resources, Division of Water Resources sent the April 26, 2018 letter to who it considered to be the owners of the Dam, who were The Landings Property Owners Association, Inc., Crown Hill Condominiums, Stephen Upham, and Stephanie Lord, John and Maryann Haughton, Wayne Dunlop, Floyd and Carolyn Matthews, and Marla Prior.

42. The State of Ohio Department of Natural Resources, Division of Water Resources did not send its April 26, 2018 letter to any of the Long Defendants, or any of their predecessors in title.

43. In 2018, the State of Ohio Department of Natural Resources, Division of Water Resources did not consider any of the Long Defendants to be owners of the Dam.

44. On or about November 25, 2019, the State of Ohio Department of Natural Resources, Division of Water Resources, issued a 2019 Dam Safety Inspection Report regarding the Dam (“2019 Dam Safety Inspection Report”).

45. The 2019 Dam Safety Inspection Report contained a section titled, “Dam Safety Legal Obligations and Responsibilities in Ohio”, which made six references to owners of dams.

46. The 2019 Dam Safety Inspection Report contained a section titled, “Owner Repairs and Responsibilities”.

47. The 2019 Dam Safety Inspection Report concluded, “The owner(s) of the dam must implement all remedial measures listed in the report.”

48. The 2019 Dam Safety Inspection Report contained a Site Map, and Photographs, neither of which depict any property owned by any of the Long Defendants.

49. The State of Ohio Department of Natural Resources, Division of Water Resources did not send the 2019 Dam Safety Inspection Report to any of the Long Defendants, or any of their predecessors in title.

50. In 2019, the State of Ohio Department of Natural Resources, Division of Water Resources did not consider any of the Long Defendants to be owners of the Dam.

51. On September 27, 2022, counsel for The State of Ohio Department of Natural Resources, Division of Water Resources in this case, Brett A. Kravitz, wrote an email message in which he stated, “Under Ohio’s dam safety laws, it is only a dam’s owner who has the legal responsibility to bring their dam into compliance and the corresponding exclusive legal right to choose the option to do so (repair, modify, breach).”

52. In a Motion filed on October 19, 2022 in this case, counsel for The State of Ohio Department of Natural Resources, Division of Water Resources in this case, Matthew E. Meyer, wrote, “Only the owner(s) of the Dam are responsible for bringing the Dam into compliance with Ohio Dam Safety laws by repairing, modifying, or breaching it. ...There is no basis in Ohio law or the facts of this case to consider property owners within a “watershed basin” where a privately-owned dam happens to be located to somehow be the owners of that dam they did not construct and have never owned.”

53. Under Ohio’s dam safety laws, it is only a dam’s owner who has the legal responsibility to bring their dam into compliance and the corresponding exclusive legal right to choose the option to do so (repair, modify, breach).

54. There is no basis in Ohio law or the facts of this case to consider property owners within a “watershed basin” where a privately-owned dam happens to be located to somehow be the owners of that dam they did not construct and have never owned.

55. The Long Defendants did not construct the Dam.

56. The Long Defendants have never owned the Dam.

57. There is no basis in Ohio law or the facts of this case to consider property owners who have never owned title to real property where a dam is located to be owners of that dam, where the dam is owned by a corporation and the property owners are required by a restrictive covenant to pay an annual assessment to that corporation.

58. Before the filing of the Third Amended Complaint in this case, the State of Ohio Department of Natural Resources, Division of Water Resources never made any request or demand related to the Dam to any of the Long Defendants, or any of their predecessors in title.

59. From 2018 through 2022, the State of Ohio Department of Natural Resources, Division of Water Resources did not consider any of the Long Defendants to be owners of the Dam.

60. The provisions of Ohio Adm. Code Chapter 1501:21 were promulgated pursuant to R.C. Chapter 1521 and provide the dam safety requirements dam owners must meet in order to safely monitor, maintain, and operate their dams in the state of Ohio.

61. Ohio Adm. Code 1501:21-3-01(W) provides that the “Owner” of a dam “means those who own, or propose to construct a dam or levee.”

62. This court has previously stated in this case, Judgment Entry as to Motion for Summary Judgment of Roger and Sharon Reed, filed March 1, 2023, that nothing in the Ohio Revised Code in Chapter 1521 or in the Ohio Administrative Code indicates that the word “Owner” means anyone or anything other than the person or entity who has title to the land on which the Dam is located.

63. This court has previously stated in this case, Judgment Entry as to Motion for Summary Judgment of Roger and Sharon Reed, filed March 1, 2023, that the owner of a dam for purposes of repair and maintenance cannot be anyone or anything other than the person or entity who has title to the land on which the dam is located.

64. None of the Long Defendants have, or have ever had, title to the real estate that the Dam is located on, as shown by the permanent parcel numbers contained in the Knox County Records.

65. None of the Long Defendants have, or have ever had, any right of access to or possession of the Dam or Lake.

66. None of the Long Defendants have, or have ever had, any right of use or control of the Dam or Lake.

67. None of the Long Defendants have, or have ever, proposed to construct a dam or levee.

68. None of the Long Defendants have ever paid any annual assessments to the Landings Property Owners Association, Inc.

69. None of the Long Defendants have, or have ever had, any ownership interest in, or ability to control, the Landings Property Owners Association, Inc.

70. The Landings Property Owners Association, Inc is the owner of the Dam under Ohio Adm. Code 1501:21-3-01(W) and has the obligation to remedy the alleged violations identified in the November 25, 2019 Dam Safety Inspection Report (“Inspection Report”).

71. The Landings Property Owners Association, Inc. was and is responsible under Section 4(B) of The Landings Phase VII Declaration and The Landings Phase VIII Declaration for the care and maintenance of the Lake and Dam.

72. The Landings Property Owners Association, Inc. failed to respond to demands from the State to perform required remedial measures to bring the Dam into compliance with Ohio Dam Safety laws.

73. While Mullins Bros. stated in the Declarations that were filed with the County Recorder that “the owners of all lots” were required “to become members of a non-profit corporation known as the Landings Common Area Association, Inc.”, it never created any such non-profit corporation, and it was therefore impossible for the Long Defendants to become members of the Landings Common Area Association, Inc.

74. Mullins Bros. failed to record any declaration or bylaws in Knox County, Ohio for either the Landings Common Area Association, Inc. or the Landings Property Owners Association, Inc.

75. Mullins Bros. failed to adequately notify the Long Defendants of the restrictions on their lots by virtue of the Declarations.

76. The restrictions set forth in the Declarations are not binding or enforceable on the Long Defendants.

77. The purported transfer of the property on which the Dam is located (Knox County Tax Parcel No. 66-09675.162), by Mullins Bros. to the shell corporation it set up, The Landings Property Owners Association, Inc., via Quitclaim Deed from Mullins Bros. on or about July 31, 2007, is null and void, leaving Mullins Bros. as the owner of the Dam.

78. Mullins Bros. also owns the parcels of property located on Knox County Tax Parcel Nos. 66-09675.165, 66-09675.167, 66-09675.168, 66-09675.169, and 66-09675.170, which abut, are adjacent to, or near the Dam and Lake.

79. Mullins Bros. is responsible for the care and maintenance of the Dam.

80. Mullins Bros. is an owner of the Dam under Ohio Adm. Code 1501:21-3-01(W) and has the obligation to remedy the violations identified by the Division in the November 25, 2019 Dam Safety Inspection Report (“Inspection Report”).

81. Venue is appropriate in this Court under Civ. R. 3(C)(1), (2), (3), (5), and (6).

82. The Court has jurisdiction to enter an award declaring the legal rights, status, and other legal relations between the parties pursuant to R.C. 2721.02(A).

83. The Long Defendants are entitled to a declaration identifying the owner(s) of the Dam under Ohio Adm. Code 1501:21-3-01(W), and that they are not owners of the Dam.

84. The Long Defendants are not owners of the Dam.

85. The Declarations are not binding or enforceable on the Long Defendants.

86. Mullins Bros. owns the property on which the Dam is located and is responsible for the care and maintenance of the Dam.

WHEREFORE, the Long Defendants pray that this Court award them the following relief:

- a. declare that the Long Defendants are not owners of the Dam and Lake which is serviced by the Dam, located on Knox County Tax Parcel No. 66-09675.162;
- b. declare that the Dam and Lake which is serviced by the Dam, located on Knox County Tax Parcel No. 66-09675.162, is owned by The Landings Property Owners Association, Inc. and that the responsibility for the care and maintenance of said Lake and Dam belongs to The Landings Property Owners Association, Inc.;
- c. declare that the Dam and Lake which is serviced by the Dam, located on Knox County Tax Parcel No. 66-09675.162 is owned by Mullins Bros. and that the responsibility for the care and maintenance of said Lake and Dam belongs to Mullins Bros.;
- d. The Long Defendants attorneys' fees and costs; and
- e. All other relief that the Court deems just and equitable.

**CROSS-CLAIM OF THE LONG DEFENDANTS AGAINST
THE LANDINGS PROPERTY OWNERS ASSOCIATION, INC.**

The Long Defendants, pursuant to Civ. R. 13(G), hereby state as their Cross-Claim against Defendant The Landings Property Owners Association, Inc. as follows:

PARTIES, JURISDICTION, VENUE, AND BACKGROUND

1. The Long Defendants incorporate by reference all paragraphs in their Amended Answer to Plaintiff's Third Amended Complaint as if fully restated herein.

2. The Knox Cattle Company Dam (“the Dam”) is an earthen dam located on a tributary to Center Run in Knox County, Monroe Township, Ohio. The Dam impounds a lake (the “Lake”).

3. Upon information and belief, in 1992, Knox Cattle Company, an Ohio General Partnership (“Knox Cattle Company”) was the owner of the Dam, the Lake, and the land surrounding them.

4. On or about March 15, 2005, Knox Cattle Company transferred the property where the Dam and Lake are located to Defendant Mullins Bros., Ltd. (“Mullins Bros.”) via Warranty Deed. This is reflected in the Knox County Recorder’s records at BK 934, Page 587-591.

5. Defendant Mullins Bros. is an Ohio limited liability company organized under the laws of the State of Ohio, and is a company in good standing as registered with the Ohio Secretary of State. Its authorized representative was and is Steve Mullins.

6. At all times relevant to this Cross Claim, Mullins Bros. operated and/or did business in Knox County, Ohio, and is a “person” as defined under R.C. 1.59(C).

7. On March 31, 2005, Steve Mullins filed Articles of Incorporation with the Ohio Secretary of State for a non-profit corporation known as “The Landings Property Owners Association, Inc.”, with an effective date for said Articles of April 1, 2005. The purpose for which the corporation was formed was “[t]o hold, maintain and control the common properties of The Landings {sic} Phase VII and VIII.”

8. Defendant The Landings Property Owners Association, Inc. is a non- profit Ohio limited liability company organized under the laws of the State of Ohio, and is a company with a cancelled status with the Ohio Secretary of State as of February 19, 2015. Its authorized representative was Steve Mullins. At all times relevant to this Cross Claim, it operated and/or did business in Mount Vernon, Knox County, Ohio, and was a “person” as defined under R.C. 1.59(C).

9. On or about July 31, 2007, Mullins Bros. transferred its ownership of the Dam (Knox County Tax Parcel No. 66-09675.162) to The Landings Property Owners Association, Inc. by Quitclaim Deed, recorded in the Knox County Recorder's Office on or about August 1, 2007, File No. 2007-00007572, Book No. 1091, Page Nos. 637-639.

10. Prior to the transfer of the Dam in August 2007, Mullins Bros. was the primary developer for The Landings Phase VII housing development.

11. On or about March 22, 2005, Mullins Bros., as the "Developer," executed, filed, and recorded its Declaration of Building and Development Restrictions for The Landing Development Phase VII, Revised ("The Landing Phase VII Declaration"). This is reflected in the Knox County Recorder records at BK 935, Pages 640-650.

12. The Landing Phase VII Declaration was prepared by or on behalf of Mullins Bros.

13. None of the Long Defendants had any role in preparation of the Landing Phase VII Declaration.

14. The Landing Phase VII Declaration does not contain any reference to a dam.

15. The Landing Phase VII Declaration does not contain any reference to the Dam.

16. The Landing Phase VII Declaration does not state anywhere that any individual homeowner in The Landing Phase VII would have any responsibility for the care and maintenance of the Dam.

17. The Landing Phase VII Declaration does not state anywhere that any individual homeowner in The Landing Phase VII would have any responsibility for the care and maintenance of the Lake.

18. The Landing Phase VII Declaration provides that "each and every subplot in The Landing Development, Phase VII as recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records shall be conveyed subject to the following restrictive covenants: . . ."

19. The Landing Phase VII Declaration provides that Mullins Bros., as the Developer, would create a non-profit corporation, and stated, “This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”

20. On or about March 13, 2007, Mullins Bros., as the “Developer,” executed, recorded, and filed its Declaration of Building and Development Restrictions for the Landing Development Phase VIII (“The Landing Phase VIII Declaration”). This is reflected in the Knox County Recorder records at BK 1069, Pages 118-128.

21. The Landing Phase VIII Declaration was prepared by or on behalf of Mullins Bros.

22. None of the Long Defendants had any role in preparation of the Landing Phase VIII Declaration.

23. The Landing Phase VIII Declaration does not contain any reference to a dam.

24. The Landing Phase VIII Declaration does not contain any reference to the Dam.

25. The Landing Phase VIII Declaration does not state anywhere that any individual homeowner in The Landing Phase VIII would have any responsibility for the care and maintenance of the Dam.

26. The Landing Phase VIII Declaration does not state anywhere that any individual homeowner in The Landing Phase VIII would have any responsibility for the care and maintenance of the Lake.

27. The Landing Phase VIII Declaration provides that “each and every subplot in The Landing Development, Phase VIII as recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records shall be conveyed subject to the following restrictive covenants: . . .”

28. The Landing Phase VIII Declaration provides that Mullins Bros., as the Developer, would create a non-profit corporation, and stated, “This corporation shall have the sole and

exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”

29. The Knox County Auditor’s website lists The Landings Property Owners Association, Inc. as the owner of the Dam (Knox County Tax Parcel No. 66-09675.162).

30. The Landings Property Owners Association, Inc. never contacted any of the Long Defendants, nor delivered any notices of meetings, notices of elections, or notices of assessments.

31. The Landings Property Owners Association, Inc. never made an assessment against any of the Long Defendants in the amount of \$200, or any amount.

32. The Landings Property Owners Association, Inc. never placed any assessment liens on record before or after any property was purchased by any of the Long Defendants.

33. The Landings Property Owners Association, Inc. never informed any of the Long Defendants that they were owners, or potential owners, of a dam.

34. The Landings Property Owners Association, Inc. never informed any of the Long Defendants that the State of Ohio changed the classification of the Dam from Class II to Class I.

35. The Landings Property Owners Association, Inc. never informed any of the Long Defendants that they had any potential liability for maintenance of the Dam.

36. Defendant The Landings Property Owners Association, Inc. has never transferred any of its ownership interest in the Dam to any of the Long Defendants.

37. Defendant The Landings Property Owners Association, Inc. has never transferred any of its ownership interest in the Dam to anyone.

38. No person or entity claiming responsibility for maintaining the Lake and Dam has ever contacted any of the Long Defendants, nor delivered any notices of meetings, notices of elections, or notices of assessments.

39. No person or entity claiming responsibility for maintaining the Lake and Dam has ever made an assessment against any of the Long Defendants in the amount of \$200, or any amount.

40. No person or entity claiming responsibility for maintaining the Lake and Dam has ever placed any assessment liens on record before or after any property was purchased by any of the Long Defendants.

41. No person or entity claiming responsibility for maintaining the Lake and Dam has ever informed any of the Long Defendants that they were owners, or potential owners, of a dam.

42. No person or entity claiming responsibility for maintaining the Lake and Dam has ever informed any of the Long Defendants that the State of Ohio changed the classification of the Dam from Class II to Class I.

43. No person or entity claiming responsibility for maintaining the Lake and Dam has ever informed any of the Long Defendants that they had any potential liability for maintenance of the Dam.

44. No person or entity claiming responsibility for maintaining the Lake and Dam has ever transferred any of its ownership interest in the Dam to any of the Long Defendants.

45. None of the Long Defendants have ever paid any annual assessments to the Landings Property Owners Association, Inc.

46. None of the Long Defendants have, or have ever had, any ownership interest in, or ability to control, the Landings Property Owners Association, Inc.

47. Defendant The Landings Property Owners Association, Inc. failed to record any declaration or bylaws in Knox County, Ohio for The Landings Property Owners Association, Inc.

48. Venue is appropriate in this Court under Civ. R. 3(C)(1), (2), (3), (5), and (6).

49. The Court has jurisdiction over this Cross-Claim by virtue of the residence of both Mullins Bros. and The Landings Property Owners Association, Inc. being in Knox County.

50. The Court has jurisdiction to enter an award declaring the legal rights, status, and other legal relations between the parties pursuant to R.C. 2721.02(A).

COUNT II
Declaratory Judgment
Ohio Revised Code § 2721.01 et seq.

51. The Long Defendants incorporate all previous paragraphs in this Cross-Claim as though fully rewritten herein.

52. The Landings Property Owners Association, Inc. owns the property on which the Dam is located (Knox County Tax Parcel No. 66-09675.162), which was transferred to The Landings Property Owners Association via Quitclaim Deed from Mullins Bros. on or about July 31, 2007.

53. The Landings Property Owners Association, Inc. also owns the parcels of property located on Knox County Tax Parcel Nos. 66-09675.165, 66-09675.167, 66-09675.168, 66-09675.169, and 66-09675.170, which abut, are adjacent to, or near the Dam and Lake.

54. Section 4(B) of The Landings Phase VII Declaration and The Landings Phase VIII Declaration states, in part, as follows: “Developer shall require the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc. This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”

55. The Landings Property Owners Association, Inc. has the sole and exclusive control of the lake located on the land of the Developer, that is, Knox County Tax Parcel No. 66-09675.162.

56. The Landings Property Owners Association, Inc. is responsible for the care and maintenance of the Dam.

57. The Landings Property Owners Association, Inc. is the non-profit corporation established by Mullins Bros. to own the Lake and Dam.

58. The Landings Property Owners Association, Inc is the owner of the Dam under Ohio Adm. Code 1501:21-3-01(W) and has the obligation to remedy the alleged violations identified in the November 25, 2019 Dam Safety Inspection Report (“Inspection Report”).

WHEREFORE, the Long Defendants request an order declaring that Defendant The Landings Property Owners Association, Inc. owns the property on which the Dam is located and is responsible for the care and maintenance of the Dam.

COUNT III
Indemnity or Contribution

59. The Long Defendants incorporate all previous paragraphs in this Cross-Claim as though fully rewritten herein.

60. The Landings Property Owners Association, Inc is the owner of the Dam under Ohio Adm. Code 1501:21-3-01(W) and has the obligation to remedy the alleged violations identified in the November 25, 2019 Dam Safety Inspection Report (“Inspection Report”).

61. The Landings Property Owners Association, Inc. was and is responsible under Section 4(B) of The Landings Phase VII Declaration and The Landings Phase VIII Declaration for the care and maintenance of the Lake and Dam.

62. The Landings Property Owners Association, Inc. failed to respond to demands from the State to perform required remedial measures to bring the Dam into compliance with Ohio Dam Safety laws.

63. If the Long Defendants are found to be liable to the State for any or all of the fines, fees, or costs associated with any judgment obtained in this case or any future fines, fees, or costs to be assessed for the care and maintenance of the Lake and/or the Dam, then The Landings Property Owners Association, Inc. is liable to the Long Defendants for indemnity or contribution of some or all said fines, fees, or costs.

WHEREFORE, the Long Defendants pray that this Court award them the following relief:

- a. declare that the Dam and Lake which is serviced by the Dam, located on Knox County Tax Parcel No. 66-09675.162, is owned by Defendant The Landings Property Owners Association, Inc. and that the sole responsibility for the care and maintenance of said Lake and Dam belongs to The Landings Property Owners Association, Inc.;
- b. If the Long Defendants are declared to be liable to the State for any fines, fees, or costs associated with the care and maintenance of the Lake or the Dam, an award declaring that The Landings Property Owners Association, Inc. shall be liable to the Long Defendants for indemnity and/or contribution;
- c. The Long Defendants attorneys' fees and costs; and
- d. All other relief that the Court deems just and equitable.

CROSS-CLAIM OF THE LONG DEFENDANTS AGAINST MULLINS BROS. LTD.

PARTIES, JURISDICTION, VENUE, AND BACKGROUND

1. The Long Defendants incorporate by reference all paragraphs in their Amended Answer to Plaintiff's Third Amended Complaint, and in the preceding Cross-Claim against Defendant The Landings Property Owners Association, Inc. as if fully restated herein.

2. The Knox Cattle Company Dam (“the Dam”) is an earthen dam located on a tributary to Center Run in Knox County, Monroe Township, Ohio. The Dam impounds a lake (the “Lake”).

3. In 1992, Knox Cattle Company, an Ohio General Partnership (“Knox Cattle Company”) was the owner of the Dam, the Lake, and the land surrounding them.

4. On or about March 15, 2005, Knox Cattle Company transferred the property where the Dam and Lake are located to Defendant Mullins Bros., Ltd. (“Mullins Bros.”) via Warranty Deed. This is reflected in the Knox County Recorder’s records at BK 934, Page 587-591.

5. Defendant Mullins Bros. is an Ohio limited liability company organized under the laws of the State of Ohio, and is a company in good standing as registered with the Ohio Secretary of State. Its authorized representative was and is Steve Mullins.

6. At all times relevant to this Cross Claim, Mullins Bros. operated and/or did business in Knox County, Ohio, and is a “person” as defined under R.C. 1.59(C).

7. On March 31, 2005, Steve Mullins filed Articles of Incorporation with the Ohio Secretary of State for a non-profit corporation known as “The Landings Property Owners Association, Inc.”, with an effective date for said Articles of April 1, 2005. The purpose for which the corporation was formed was “[t]o hold, maintain and control the common properties of The Landings {sic} Phase VII and VIII.”

8. Defendant The Landings Property Owners Association, Inc. is a non- profit Ohio limited liability company organized under the laws of the State of Ohio, and is a company with a cancelled status with the Ohio Secretary of State as of February 19, 2015. Its authorized representative was Steve Mullins. At all times relevant to this Cross Claim, it operated and/or did business in Mount Vernon, Knox County, Ohio, and was a “person” as defined under R.C. 1.59(C).

9. On or about July 31, 2007, Mullins Bros. transferred the property where the Dam and the Lake are located (Knox County Tax Parcel No. 66-09675.162) to Defendant The Landings Property Owners Association, Inc. by Quitclaim Deed for \$0, recorded in the Knox County Recorder's Office on or about August 1, 2007, File No. 2007-00007572, Book No. 1091, Page Nos. 637-639.

10. Prior to its transfer of the Dam to The Landings Property Owners Association, Inc. in August 2007, Mullins Bros. was the primary developer for The Landings housing development in Mount Vernon, Ohio.

11. In 2007, Mullins Bros. was primarily a real estate holding company/development company.

12. In 2007, Mullins Bros. was an experienced real estate development company.

13. On or about March 22, 2005, Mullins Bros., as the "Developer," executed, filed, and recorded its Declaration of Building and Development Restrictions for The Landing Development Phase VII, Revised ("The Landing Phase VII Declaration"). This is reflected in the Knox County Recorder records at BK 935, Pages 640-650.

14. The Landing Phase VII Declaration was prepared by or on behalf of Mullins Bros.

15. None of the Long Defendants had any role in preparation of the Landing Phase VII Declaration.

16. The Landing Phase VII Declaration does not contain any reference to a dam.

17. The Landing Phase VII Declaration does not contain any reference to the Dam.

18. The Landing Phase VII Declaration does not state anywhere that any individual homeowner in The Landing Phase VII would have any responsibility for the care and maintenance of the Dam.

19. The Landing Phase VII Declaration does not state anywhere that any individual homeowner in The Landing Phase VII would have any responsibility for the care and maintenance of the Lake.

20. The Landing Phase VII Declaration provides that “each and every subplot in The Landing Development, Phase VII as recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records shall be conveyed subject to the following restrictive covenants: . . .”

21. One of those restrictive covenants is found in Section 4(B) of the Landing Phase VII Declaration, which states, in part, as follows: “Developer shall require the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc. This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”

22. The Landing Phase VII Declaration provides that Mullins Bros., as the Developer, would create a non-profit corporation, and stated, “This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”

23. Mullins Bros. did not require the owners of all lots in the Landing Phase VII to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

24. On or about March 13, 2007, Mullins Bros., as the “Developer,” executed, recorded, and filed its Declaration of Building and Development Restrictions for the Landing Development Phase VIII (“The Landing Phase VIII Declaration”). This is reflected in the Knox County Recorder records at BK 1069, Pages 118-128.

25. The Landing Phase VIII Declaration was prepared by or on behalf of Mullins Bros.

26. None of the Long Defendants had any role in preparation of the Landing Phase VIII Declaration.

27. The Landing Phase VIII Declaration does not contain any reference to a dam.

28. The Landing Phase VIII Declaration does not contain any reference to the Dam.

29. The Landing Phase VIII Declaration does not state anywhere that any individual homeowner in The Landing Phase VIII would have any responsibility for the care and maintenance of the Dam.

30. The Landing Phase VIII Declaration does not state anywhere that any individual homeowner in The Landing Phase VIII would have any responsibility for the care and maintenance of the Lake.

31. The Landing Phase VIII Declaration provides that “each and every subplot in The Landing Development, Phase VIII as recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records shall be conveyed subject to the following restrictive covenants: . . .”

32. One of those restrictive covenants is found in Section 4(B) of the Landing Phase VIII Declaration, which states, in part, as follows: “Developer shall require the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc. This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.”

33. Mullins Bros. did not require the owners of all lots in the Landing Phase VIII to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

34. No one from or on behalf of Mullins Bros. ever formed a non-profit corporation known as the “Landings Common Area Association, Inc.”

35. Mullins Bros. failed to record any declaration or bylaws in Knox County, Ohio for either the Landings Common Area Association, Inc. or the Landings Property Owners Association, Inc.

36. The Knox County Auditor's website lists The Landings Property Owners Association, Inc. as the owner of the Dam (Knox County Tax Parcel No. 66-09675.162).

37. The Landings Property Owners Association, Inc. never contacted any of the Long Defendants, nor delivered any notices of meetings, notices of elections, or notices of assessments.

38. The Landings Property Owners Association, Inc. never made an assessment against any of the Long Defendants in the amount of \$200, or any amount.

39. The Landings Property Owners Association, Inc. never placed any assessment liens on record before or after any property was purchased by any of the Long Defendants.

40. The Landings Property Owners Association, Inc. never informed any of the Long Defendants that they were owners, or potential owners, of a dam.

41. The Landings Property Owners Association, Inc. never informed any of the Long Defendants that the State of Ohio changed the classification of the Dam from Class II to Class I.

42. The Landings Property Owners Association, Inc. never informed any of the Long Defendants that they had any potential liability for maintenance of the Dam.

43. Defendant The Landings Property Owners Association, Inc. has never transferred any of its ownership interest in the Dam to any of the Long Defendants.

44. Defendant The Landings Property Owners Association, Inc. has never transferred any of its ownership interest in the Dam to anyone.

45. At all times pertinent hereto, The Landings Property Owners Association, Inc., was created and controlled by Steve Mullins.

46. No person or entity claiming responsibility for maintaining the Lake and Dam has ever contacted any of the Long Defendants, nor delivered any notices of meetings, notices of elections, or notices of assessments.

47. No person or entity claiming responsibility for maintaining the Lake and Dam has ever made an assessment against any of the Long Defendants in the amount of \$200, or any amount.

48. No person or entity claiming responsibility for maintaining the Lake and Dam has ever placed any assessment liens on record before or after any property was purchased by any of the Long Defendants.

49. No person or entity claiming responsibility for maintaining the Lake and Dam has ever informed any of the Long Defendants that they were owners, or potential owners, of a dam.

50. No person or entity claiming responsibility for maintaining the Lake and Dam has ever informed any of the Long Defendants that the State of Ohio changed the classification of the Dam from Class II to Class I.

51. No person or entity claiming responsibility for maintaining the Lake and Dam has ever informed any of the Long Defendants that they had any potential liability for maintenance of the Dam.

52. No person or entity claiming responsibility for maintaining the Lake and Dam has ever transferred any of its ownership interest in the Dam to any of the Long Defendants.

53. No person or entity claiming responsibility for maintaining the Lake and Dam has ever contacted any of the Long Defendants, nor delivered any notices of meetings, notices of elections, or notices of assessments.

54. No person or entity claiming responsibility for maintaining the Lake and Dam has ever made an assessment against any of the Long Defendants in the amount of \$200, or any amount.

55. No one from or on behalf of Mullins Bros. has ever placed any assessment liens on record before or after any property was purchased by any of the Long Defendants.

56. No one from or on behalf of Mullins Bros. has ever informed any of the Long Defendants that they were owners, or potential owners, of a dam.

57. Neither Steve Mullins, nor any other agent of Mullins Bros., has ever informed any of the Long Defendants that the State of Ohio changed the classification of the Dam from Class II to Class I.

58. No one from or on behalf of Mullins Bros. has ever informed any of the Long Defendants that they had any potential liability for maintenance of the Dam.

59. No one from or on behalf of Mullins Bros. has ever transferred any of its ownership interest in the Dam to any of the Long Defendants.

60. No one from or on behalf of Mullins Bros. has ever contacted any of the Long Defendants, nor delivered any notices of meetings, notices of elections, or notices of assessments.

61. No one from or on behalf of Mullins Bros. has ever made an assessment against any of the Long Defendants in the amount of \$200, or any amount.

62. None of the Long Defendants have ever paid any annual assessments to the Landings Property Owners Association, Inc.

63. None of the Long Defendants have, or have ever had, any ownership interest in, or ability to control, the Landings Property Owners Association, Inc.

64. The State of Ohio Department of Natural Resources, Division of Water Resources, issued a 2010 Dam Safety Inspection Report regarding the Dam (“2010 Dam Safety Inspection Report”).

65. The State of Ohio Department of Natural Resources, Division of Water Resources sent the 2010 Dam Safety Inspection Report to who it considered to be the owners of the Dam, who were The Landings Property Owners Association, Inc., Crown Hill Condominiums, Stephen Upham, and Stephanie Lord, John and Maryann Haughton, Wayne Dunlop, Floyd and Carolyn Matthews, and Bruce and Peggy Oldam.

66. The State of Ohio Department of Natural Resources, Division of Water Resources did not send the 2010 Dam Safety Inspection Report to any of the Long Defendants, or any of their predecessors in title.

67. The State of Ohio Department of Natural Resources, Division of Water Resources, issued a 2015 Dam Safety Inspection Report regarding the Dam (“2015 Dam Safety Inspection Report”).

68. The State of Ohio Department of Natural Resources, Division of Water Resources sent the 2015 Dam Safety Inspection Report to who it considered to be the owners of the Dam, who were The Landings Property Owners Association, Inc., Crown Hill Condominiums, Stephen Upham, and Stephanie Lord, John and Maryann Haughton, Wayne Dunlop, Floyd and Carolyn Matthews, and Marla Prior.

69. The State of Ohio Department of Natural Resources, Division of Water Resources did not send the 2015 Dam Safety Inspection Report to any of the Long Defendants, or any of their predecessors in title.

70. On April 26, 2018, the State of Ohio Department of Natural Resources, Division of Water Resources sent a letter to potential owners of the Dam requesting a schedule for completing the required remedial measures listed in the 2010 and 2015 Dam Safety Inspection Reports.

71. The State of Ohio Department of Natural Resources, Division of Water Resources sent the April 26, 2018 letter to who it considered to be the owners of the Dam, who were The Landings Property Owners Association, Inc., Crown Hill Condominiums, Stephen Upham, and Stephanie Lord, John and Maryann Haughton, Wayne Dunlop, Floyd and Carolyn Matthews, and Marla Prior.

72. The State of Ohio Department of Natural Resources, Division of Water Resources did not send its April 26, 2018 letter to any of the Long Defendants, or any of their predecessors in title.

73. Before the filing of the Third Amended Complaint in this case, the State of Ohio Department of Natural Resources, Division of Water Resources never made any request or demand related to the Dam to any of the Long Defendants, or any of their predecessors in title.

74. Defendant Mullins Bros. knew, or with reasonable diligence should have known, that the Lake and Dam had been conveyed to a property owners' association different from the association named in the Phase VII Declaration of Building and Development Restrictions.

75. Defendant Mullins Bros. knew, or with reasonable diligence should have known, that the Lake and Dam had been conveyed to a property owners' association different from the association named in the Phase VIII Declaration of Building and Development Restrictions.

76. Defendant Mullins Bros. failed to take any action to inform the Long Defendants, or other similarly situated landowners in Phases VII and VIII , that the Lake and Dam had been conveyed to a property owners' association different from the association named in the Phase VII and Phase VIII Declarations of Building and Development Restrictions.

77. The Phase VII Restrictive Covenants were prepared by legal counsel for Mullins Bros., signed on March 2, 2005, recorded on March 3, 2005, and Paragraph B specified that all homeowners were to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

78. The Articles of Incorporation for The Landings Property Owners Association, Inc. were prepared by legal counsel for Mullins Bros., signed on March 14, 2005, mailed to the Secretary of State's Office by said legal counsel, the form was not expedited, and the Articles were filed on March 31, 2005 with an effective date of April 1, 2005.

79. The Phase VIII Restrictive Covenants were prepared by legal counsel for Mullins Bros., signed on February 9, 2007, recorded on March 13, 2007, and Paragraph B specified that all homeowners were to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

80. The Quit Claim Deed transferring the lake from Mullins Bros. to The Landings Property Owners Association, Inc. was prepared by legal counsel for Mullins Bros., signed on July 31, 2007, and recorded on August 1, 2007.

81. Mullins Bros. was the owner of the Lake, Dam, and surrounding area during the time period from March 2, 2005 through July 31, 2007, and could have corrected any alleged errors in any documents during that time period.

82. At the time Mullins Bros. sold the parcels in The Landings Phase VII and The Landings Phase VIII developments, the Dam was not a Class I dam as defined under Rule 1501:21-13-01(A) of the Ohio Administrative Code.

83. The Dam was classified as a Class I dam as of October 14, 2009 — two years after Mullins Bros. transferred its ownership of the Dam.

84. Upon information and belief, the Dam became a Class I dam only after Mullins Bros. sold the parcels in The Landings Phase VII and The Landings Phase VIII developments, and in part due to the City of Mount Vernon's continued approval of building construction in the watershed in which the Lake and the Dam are located.

85. On October 14, 2009, David Hasselmann, Chief, Division of Soil and Water Resources, Ohio Department of Natural Resources, sent a letter to Steve Mullins, The Landings Property Owners Association, Inc.; Crown Hill Condominiums; Stephen P. Upham and Stephanie J. Lord, John Michael and Mary Haughton; Wayne E. and Virginia Dunlop; Floyd E. and Carolyn Matthews; Bruce E. and Peggy L. Oldham; and William and Barbara Hatfield, stating:

It was found that significant development had taken place immediately downstream of the dam. Division engineers visited the dam during the spring of 2008 and evaluated its classification according to the mandates of the Ohio Administrative Code . . . Based on ariel photography and field observations, the classification of the Knox Cattle Dam has been changed from Class II to Class I due to the potential downstream hazard of the dam.

86. The Dam is a Class I dam, per Ohio Adm. Code 1501:21-13-01(A)(1). Among other things, a Class I dam is one whose sudden failure would result in either the probable loss of human life or the structural collapse of at least one residence or one commercial or industrial business.

87. Multiple properties are located downstream of the Dam including several homes, businesses, and roads. Sudden failure of the Dam would result in a probable loss of human life in a number of residences and flooding of high value property downstream of the Dam.

88. Neither Steve Mullins, nor any other agent of Mullins Bros., ever notified any of the Long Defendants about the letter dated October 14, 2009 from David Hasselmann, Chief, Division of Soil and Water Resources, Ohio Department of Natural Resources.

89. The Knox County Auditor's website lists The Landings Property Owners Association, Inc. as the owner of the Dam (Knox County Tax Parcel No. 66-09675.162).

90. Venue is appropriate in this Court under Civ. R. 3(C)(1), (2), (3), (5), and (6).

91. The Court has jurisdiction over this Cross-Claim by virtue of the residence of both Mullins Bros. and The Landings Property Owners Association, Inc. being in Knox County.

92. The Court has jurisdiction to enter an award declaring the legal rights, status, and other legal relations between the parties pursuant to R.C. 2721.02(A).

COUNT I
Declaratory Judgment
Ohio Revised Code § 2721.01 et seq.

93. The Long Defendants incorporate all previous paragraphs in this Cross-Claim as though fully rewritten herein.

94. While Mullins Bros. stated in the Declarations that were filed with the County Recorder that "the owners of all lots" were required "to become members of a non-profit corporation known as the Landings Common Area Association, Inc.", it never created any such non-profit corporation, and it was therefore impossible for the Long Defendants to become members of the Landings Common Area Association, Inc.

95. Mullins Bros. failed to adequately notify the Long Defendants of the restrictions on their lots by virtue of the Declarations.

96. The restrictions set forth in the Declarations are not binding or enforceable on the Long Defendants.

97. The purported transfer of the property on which the Dam is located (Knox County Tax Parcel No. 66-09675.162), by Mullins Bros. to the shell corporation it set up, The Landings Property Owners Association, Inc., via Quitclaim Deed from Mullins Bros. on or about July 31, 2007, is null and void, leaving Mullins Bros. as the owner of the Dam.

98. Mullins Bros. also owns the parcels of property located on Knox County Tax Parcel Nos. 66-09675.165, 66-09675.167, 66-09675.168, 66-09675.169, and 66-09675.170, which abut, are adjacent to, or near the Dam and Lake.

99. Mullins Bros. is responsible for the care and maintenance of the Dam.

100. Mullins Bros. is an owner of the Dam under Ohio Adm. Code 1501:21-3-01(W) and has the obligation to remedy the violations identified by the Division in the November 25, 2019 Dam Safety Inspection Report.

101. The Long Defendants, therefore, request an order declaring that the Declarations are not binding or enforceable on the Long Defendants and that Mullins Bros. owns the property on which the Dam is located and is responsible for the care and maintenance of the Dam.

COUNT II
Declaratory Judgment
Ohio Revised Code § 2721.01 et seq.

102. The Long Defendants incorporate all previous paragraphs in this Cross-Claim as though fully rewritten herein.

103. Mullins Bros. was the primary developer for The Landings Phase VII and The Landings Phase VIII (the “Landings Development”), which were projects that developed various residential parcels of property on land in the vicinity of the Lake and the Dam.

104. The Landings Development was and is a planned community within R.C. Chapter 5312.

105. Mullins Bros. prepared and recorded the Declarations stating that the Landings Development was a planned community under Ohio law.

106. As the Developer, Mullins Bros. was responsible for establishing an owners association, comprised of owners of individual lots in the Landings Development, that would be

responsible for the administrative governance, maintenance, and upkeep of the Landings Development.

107. As Developer, Mullins Bros. was responsible for preparation of the Declarations which set certain rules for lot owners regarding The Landings Common Area Association, Inc.

108. As Developer, Mullins Bros. was responsible for preparation of the Quit Claim Deed which conveyed title to the Dam to The Landings Property Owners Association, Inc.

109. The Landings Property Owners Association, Inc. was and is responsible for the care and maintenance of the Lake.

110. By virtue of the restrictive covenants placed on parcels of properties in the Landings Development, owners of said parcels were required to join The Landings Common Area Association, Inc. (the “Association”).

111. By virtue of the restrictive covenants placed on parcels of properties in the Landings Development, members of the Association were required to pay regular dues into the Association.

112. Said dues should have been utilized to pay for the care and maintenance of the Lake.

113. Upon information and belief, had Association dues been regularly collected, there would currently be funds to provide for the care and maintenance of the Lake.

114. The Long Defendants justifiably relied on Mullins Bros. to take all necessary and required steps to prepare and file documents with the Ohio Secretary of State and the Knox County Recorder setting up a corporation which would have exclusive control of the Lake and be responsible for its care and maintenance, and to require property owners to pay assessments to that same corporation.

115. Mullins Bros., through no fault of the Long Defendants, failed to take all necessary and required steps to prepare and file documents with the Ohio Secretary of State and the Knox

County Recorder setting up a corporation which would have exclusive control of the Lake and be responsible for its care and maintenance, and to require property owners to pay assessments to that same corporation.

116. The Long Defendants have been damaged by the failure of Mullins Bros. to take all necessary and required steps to prepare and file documents with the Ohio Secretary of State and the Knox County Recorder setting up a corporation which would have exclusive control of the Lake and be responsible for its care and maintenance, and to require property owners to pay assessments to that same corporation.

117. The Long Defendants, therefore, request an order declaring that the Declarations are not binding or enforceable on the Long Defendants and that Mullins Bros. owns the property on which the Dam is located and is responsible for the care and maintenance of the Dam.

COUNT III
Declaratory Judgment
Ohio Revised Code § 2721.01 et seq.

118. The Long Defendants incorporate all previous paragraphs in this Cross-Claim as though fully rewritten herein.

119. As Developer, Mullins Bros. was responsible for formatting, arranging, and selecting the plot locations in the Landings Development.

120. As Developer, Mullins Bros. was responsible for establishing and maintaining compliance during and after construction of the Landings Development with the provisions of the federal Water Pollution Control Act, as amended, 33 U.S.C. Sec. 1251, et seq., and the Ohio Water Pollution Control Act, R.C. Chapter 6111. See Ohio Environmental Protection Agency General Permit Authorization for Stormwater Discharges Associated with Construction Activity, Ohio EPA Permit No.: OHC00005.

121. Upon information and belief, Mullins Bros. sought and obtained an initial stormwater permit for discharges associated with construction for its development of the Landings Development.

122. Upon information and belief, Mullins Bros. did not seek regulatory approval for the addition of subsequent plots in the Landings Development following its initial application for a stormwater construction permit.

123. Upon information and belief, Mullins Bros. did not account for or maintain the requisite water maintenance practices for the Landings Development during and after its construction.

124. Upon information and belief, the failure to develop, maintain, and ensure the required stormwater and water management protocols at the Landings Development has caused and/or exacerbated the conditions at the Lake and Dam, such conditions having been described in the Third Amended Complaint herein.

125. Upon information and belief, the failure by Mullins Bros. to obtain regulatory approval for the number of plots developed from local or state authorities caused and/or exacerbated the conditions at the Lake and Dam, such conditions having been described in the Third Amended Complaint herein.

COUNT IV
Breach of Contract

126. The Long Defendants incorporate all previous paragraphs in this Cross-Claim as though fully rewritten herein.

127. Mullins Bros. claims that it is a party to a contract with the Long Defendants in the form of The Landings Phase VII and VIII Declarations.

128. If The Landings Phase VII and VIII Declarations constitute contracts, which the Long Defendants deny, then Mullins Bros. breached the contracts by failing to comply with its obligations thereunder, including requiring the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

129. Paragraph 19 of The Landings Phase VII and VIII Declarations provides the Long Defendants the right to remedy violations or breaches of the Declarations.

130. The Long Defendants have suffered damages as a direct and proximate result of the breaches of contract by Mullins Bros.

COUNT V
Indemnity or Contribution

131. The Long Defendants incorporate all previous paragraphs in this Cross-Claim as though fully rewritten herein.

132. The Landings Property Owners Association, Inc. failed to respond to demands from the State to perform required remedial measures to bring the Dam into compliance with Ohio Dam Safety laws.

133. If the Long Defendants are found to be liable to the State for any or all of the fines, fees, or costs associated with any judgment obtained in this case or any future fines, fees, or costs to be assessed for the care and maintenance of the Lake and/or the Dam, then Mullins Bros. is liable to the Long Defendants for indemnity or contribution of some or all said fines, fees, or costs.

WHEREFORE, the Long Defendants pray that this Court award them the following relief:

- a. Declare that the Long Defendants are not owners of the Dam and Lake which is serviced by the Dam, located on Knox County Tax Parcel No. 66-09675.162;

- b. declare that the Dam and Lake which is serviced by the Dam, located on Knox County Tax Parcel No. 66-09675.162, is owned by Mullins Bros., and that the responsibility for the care and maintenance of said Lake and Dam belongs to Mullins Bros.;
- c. declare that the Declarations are not binding or enforceable on the Long Defendants;
- d. if the Long Defendants are declared to be liable to the State for any fines, fees, or costs associated with the care and maintenance of the Lake or the Dam, an award declaring that Mullins Bros. shall be liable to the Long Defendants for indemnity and/or contribution;
- e. damages in an amount of at least \$25,000;
- f. the Long Defendants attorneys' fees and costs; and
- g. all other relief that the Court deems just and equitable.

Respectfully submitted,

/s/ Stephen E. Chappellear

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 9th day of June, 2023.

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